



Invitation for Bid (IFB)

CRACK SEALING PROGRAM FOR YEARS 2026 AND 2027 (#202670)

IFB No. 7835

Due: Tuesday, February 17, 2026, 2:30 p.m. Eastern Time

_____ Company	_____ Street address	_____ City
_____ State, Zip	_____ Phone	_____ Company Website

Completed IFB document and pricing **must** be submitted through the BidNet Michigan Inter-governmental Trade Network (MITN) website <https://www.bidnetdirect.com/>

This IFB is for **Crack Sealing Program for Years 2026 and 2027 (#202670)** as specified in the special provisions and pricing section. Please submit a bid for firm-fixed pricing for the special provisions for crack sealing described herein. Items bid must be manufactured by the original equipment manufacturer (OEM) or must be an approved equal.

All goods meeting specifications, brand, and part number shall be delivered in good condition as required, on the dates established.

1.00 SOLICITATION INFORMATION

1.01 COMMUNICATION

Purchasing Agent: Tracy McDonald
248-858-4796 voice
purchasing@rcoc.org

1.02 SOLICITATION SCHEDULE

Published on BidNet	Tuesday, February 3, 2026
IFB due date	Tuesday, February 17, 2026, 2:30 p.m., ET

1.03 BID AWARD

The contract will be awarded to the bidder who has offered the lowest price and has met the required specifications. RCOC reserves the right to award to more than one bidder, as it determines in its best interests. Unit prices on all items will prevail.

1.04 BIDDER REJECTION

RCOC reserves the right to reject any and all bids or any part thereof. Any incomplete bid and any bid in which prices are obvious errors may be rejected. A non-conforming response to the specifications or terms and conditions will be considered non-responsive and may be rejected.

1.05 PROTEST AND APPEAL PROCEDURES

Bidders aggrieved by the award of any solicitation or resulting contract, may file a written notice of protest with the purchasing agent within seven (7) calendar days of award by the Board of Road Commissioners for Oakland County.

1.06 Alternate Bid

Bidders may submit an alternate bid. Alternate bids must be submitted as a complete and separate bid.

1.07 INCURRED COSTS FOR BIDDING

RCOC shall not be responsible for costs incurred in the preparation and presentation of this bid.

1.08 SAMPLES

Samples may be requested to facilitate the evaluation process, especially if bidding an alternate product. If required, the samples shall be provided to RCOC within 48 hours. RCOC item number, bidder name, and product number shall be clearly marked on samples. Bidders requesting samples be returned must include a pre-paid shipping label, or UPS account information with the samples.

2.00 INFORMATION FOR BIDDERS

2.01 FINANCIAL DISCLOSURE REQUIREMENTS

RCOC requires that each bidder be financially capable of carrying out the terms of the contract. Bidders may be required to submit a copy of a recent financial statement or annual report. Such requests will be made in writing.

2.02 SUBCONTRACTS

The contractor shall not assign, transfer, convey, sublet or otherwise dispose of this contract, including any or all of its right, title or interest therein, or its power to execute such contract to any person, company or corporation without prior written consent of the RCOC.

2.03 EXEMPTION FROM TAXES

The RCOC is eligible for government pricing and is tax exempt.

2.04 GOVERNING LAW

This contract and all actions hereunder shall be governed by, subject to, and construed according to the laws of the State of Michigan.

2.05 CONTRACT COMMENCEMENT DATE

The contract commencement date shall be the date of the signing of the purchase order (PO) or execution of the contract, as set forth in the PO.

2.06 PACKING SLIPS

The successful bidder shall indicate purchase order number and delivery location on all packing slips and invoices.

2.07 INVOICING AND PAYMENT

Payment will be by ACH transfer or net thirty (30) days after acceptance by RCOC. The successful bidder shall provide a W-9 by email to acctspay@rcoc.org within ten (10) calendar days of award.

2.08 SERVICE CONTRACTS

Upon delivery, a signature of an RCOC employee must be obtained on the service ticket that states the quantity of material delivered. The signed delivery copy must be included with invoicing. RCOC will not be responsible for payment of invoices submitted without signed delivery tickets, or for any discrepancies not reported in writing within 30 days of occurrence.

2.09 HAZARDOUS SUBSTANCES

State law requires that shipments of hazardous substances shall include Material Safety Data Sheets (MSDS). If required, the website for the MSDS (or a paper copy) must be supplied prior to the first order shipped under any contract, and at any time the MSDS are revised.

2.10 CONFLICT OF INTEREST

It is RCOC's policy that no RCOC employees or businesses owned and operated by RCOC employees can be used in the performance of this contract.

The services described in this bid may not be assignable without the prior written consent of the RCOC.

3.00 INSURANCE

Successful bidders shall file with the Road Commission for Oakland County Board, copies of completed certificates of insurance as evidence that adequate insurance is carried and continuously maintain such insurance during the life of the contract. Insurance coverage shall be provided in accordance with the following:

1. Comprehensive General Liability and Auto Liability

Including coverage for owned, hired, and non-owned vehicles and Michigan no-fault coverage (PIP)

2. Bodily Injury and Property Damage:

The minimum limits of bodily injury liability and property damage liability shall be: \$1,000,000/per person or occurrence/aggregate

OR Combined single limit: Bodily injury and property damage liability shall be \$1,000,000 per occurrence/aggregate. Such insurance shall include broad form contractual liability.

3. Products Liability/Completed Operation

\$1,000,000/ occurrence/aggregate

Worker's Compensation Insurance – Bodily Injury – Statutory

Employer's Liability -- \$500,000/person

The successful bidders shall not cancel, reduce, or non-renew the coverage of any insurance required by this section without 30 days prior written notice to the Board. All insurance provided in accordance with this section shall include an endorsement whereby the insurer shall agree to notify the Board immediately of non-renewal or any reduction or cancellation of any coverage.

The successful bidder shall obtain owner's protective liability insurance with the Road Commission for Oakland County as the named insured.

The successful Bidder agrees to save harmless, indemnify, represent and defend the Board, its officers, agents and employees against any and all claims for personal injury, property damage, or any other claims of whatsoever nature arising out of or related to the performance or non-performance of the work by the Bidder, the Bidder's employees, agents and subcontractors.

RCOC must be listed as additional insured on General Liability and Auto Liability.

The successful bidder shall require subcontractors maintain insurance as stated above. All insurance shall be carried with insurance companies authorized to do business in the State of Michigan and acceptable to the RCOC. Alternate acceptable insurance may be approved by RCOC.

4.00 ORDER AND CONTACT INFORMATION

Please provide the following information for ordering and for customer service contracts.

Order Desk

Customer Service

Name

Name

Phone number

Phone number

Email address

Email address

5.00 INFORMATION FROM BIDDER

Is there an objection or deviation?

YES ____ NO ____

Specify: _____

How long do you anticipate your ability to hold pricing? _____

Indicate number of days for delivery to RCOC after receipt of order: _____

Minimum Order Requirements: _____

Do you offer payment discounts? For example, 2% 10 Net 30

YES ____ NO ____

If so, state discount _____

The undersigned is authorized to represent the persons, firms and corporations joining and participating in the submission of this bid, and commits to meeting all aspects of the bid, terms and conditions.

Authorized Signature

Title

Print Name

Email

Company

Street address

City

State, Zip

Phone

Company Website

ROAD COMMISSION FOR OAKLAND COUNTY
TERMS AND CONDITIONS

Specification Deviation: Any deviation from this specification MUST be noted in detail and submitted in writing. Completed specifications should be attached for any substitutions offered. The absence of a specification deviation statement and accompanying specification will hold the solicitor strictly accountable to the specifications as written herein. Failure to submit this document of specification deviation, if applicable, shall be grounds for rejection of the item when offered for delivery. If specifications or descriptive papers are submitted with bids or proposals, the solicitor's name should be clearly shown on each document. The RCOC retains the right to determine the equivalency of any product or service.

Quantities: The RCOC requests purchase prices for the items identified in this solicitation, and in accordance with the specifications provided. The quantities provided may be given as a guideline only for the purpose of quote preparation. These quantities shall not be construed as the total number of purchases for the contract. This estimated figure may increase and/or decrease throughout the term. No guarantee is expressed or implied as to the total quantity of items to be purchased under this contract. The RCOC reserves the right to add or delete like or related items at any time during the term of this contract. The additions or deletions shall be incorporated into the contract in the form of an addendum.

Evaluation: It is RCOC's intent to award the contract to one supplier; however, RCOC reserves the right to award to multiple suppliers if RCOC, at its sole discretion, deems such action to be to the best interest of the public we serve. Contract award will be made to the lowest responsive/responsible supplier meeting all specifications.

Fiscal Funding: Funding of this contract is dependent on budget appropriations set each fiscal year. If necessary funds to continue with the specified equipment and services are not allocated by RCOC's Board, this contract shall be terminated at the expiration of the appropriated funds.

Delivery and Receipt of Goods: Accessibility for delivery purposes shall be between the hours of 7:30 a.m. and 2:30 p.m. Monday through Friday, with exception of RCOC observed holidays. All deliveries shall be received acceptance "subject to inspection". All goods must be tailgate delivered.

F.O.B. Destination Freight Prepaid: Title passes to the RCOC when goods are delivered to an RCOC location. The supplier shall pay all freight charges, owns the goods during transit and files claims, if any.

Performance: The supplier agrees to deliver all items meeting specifications, brand, and part number in good condition, on the dates established. For blanket orders, failure to comply with the above performance standards in excess of 5% may result in the cancellation of the order.

Hold Harmless: The supplier agrees to save harmless, indemnify, represent, and defend the RCOC Board, its officers, agents, and employees against any and all claims of whatsoever nature arising out of, or related to, the performance or non-performance of the work by the supplier, the supplier's employees, or agents.

MIOSHA Regulations: All equipment, machinery, tools and vehicles must meet all MIOSHA standards to be considered.

Compliance with Applicable Laws and Regulations: The supplier specifically agrees to comply with any and all applicable State, Federal, and Local statutes, ordinances, and regulations, and with RCOC regulations during performance of the services and will require compliance of all subcontractors. Additionally, the supplier shall comply with the following: In accordance with Michigan 1976 PA 453, the supplier hereto agrees not to discriminate against an employee or applicant for employment with respect to hire, tenure, terms, conditions or privileges of employment, because of race, color, religion, national origin, age, sex, height, weight or marital status. Further, in accordance with Michigan 1976 PA No. 220, as amended, the parties hereby agree not to discriminate against an employee or applicant for employment with respect to hire, tenure, terms, conditions or privileges of employment, or a matter directly or indirectly related to employment, because of a disability that is unrelated to the individual's ability to perform the duties of a particular job or position. The supplier further agrees that it will require all subcontractors for this project comply with this provision.

Taxes: The RCOC, a government agency, is eligible for government pricing schedules and is tax exempt.

Payment: Payment shall be approximately 30 days after receipt of goods and correct invoice and all specifications herein being met, including the providing of a W-9 form to RCOC via email at acctspay@rcoc.org. The purchase order number must appear on all invoices.

Termination for Convenience

RCOC may terminate this contract at any time for any reason by giving at least thirty (30) days' notice in writing to the supplier. If the agreement is terminated by RCOC, the supplier will be paid for all outstanding invoices as of the date of termination.

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SPECIAL PROVISION
FOR
CRACK SEALING

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a. Description

This work shall consist of cleaning, preparing and sealing random cracks and joints on various asphalt roads by overband method and joint sealing on concrete roads by tip/flush filling method as directed by the Project Engineer. A majority of this work is expected to be performed on asphalt roads via the overband method and minor portion on concrete roads via the tip/flush fill method. This work shall be done in accordance with Section 502 of the Michigan Department of Transportation 2020 Standard Specifications for Construction, except as herein provided:

b. Materials

Overband and Concrete Crack Seal (Flush Fill)

Provide material as specified in subsection 502.02. The asphalt rubber product must come from the Qualified Product List.

c. Construction

1. Description- Overband Crack Fill (HMA) and Concrete Crack Seal (Flush Fill)

Clean cracks and joints in existing HMA pavement or concrete pavement and remove existing damaged or deteriorated overband, backer rod, loose dirt, vegetation and foreign material. Furnish and use a compressed air system that produces a continuous, high-volume, high-pressure stream of clean dry air that can produce a minimum of 100 psi and continuous 150 cfm air flow.

2. Equipment

The equipment used for cleaning random cracks for sealing in existing pavement shall include, but is not limited to the following:

- A. Air Compressor: Air compressors shall be portable and capable of furnishing not less than 150 cubic feet of air per minute at a pressure not less than 100 pounds per square inch. Suitable traps shall be employed to maintain the compressed air free of oil and moisture.
- B. Drying Equipment: The contractor shall provide equipment capable of removing any and all residual moisture from the random cracks by methods acceptable to the Project Engineer or his designee, note torch drying will not be permitted.
- C. Melter Applicator: Provide a melter applicator consisting of a boiler kettle equipped with a pressure pump, hose and applicator wand. Equip the hose with a shutoff

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control. Equip the unit with a mechanical full-sweep agitator in the kettle to provide continuous blending. Equip the unit with thermometers to monitor the material temperature and heating oil temperature. Provide thermostatic controls that allow the operator to regulate material temperature up to 425°F.

- D. Application Wand: Apply the material using either a wand followed by a V-shaped or U-Shaped squeegee or a round application head with a concave underside. For flush filling concrete cracks and/or joints use the appropriate narrow wand tip to apply material directly into cracks/joints with no overband.

3. Preparation

A. Clean Joints and Cracks

Transverse joints and random cracks will be thoroughly cleaned by means of an air jet under a pressure of not less than 100 psi or a combination of methods (removing back rod and air jet) for concrete joints. All dirt and debris resulting from crack cleaning shall be blown off the roadway by the contractor. Previously sealed open cracks shall be cleaned to new asphalt or concrete. Cleaning and removal of existing sealer material prior to resealing the crack or joint shall be considered incidental to the joint or crack repair. Debris from cleaning cracks shall not be blown onto vehicles. Contractor is responsible for disposal of concrete backer rod material resulting from tip/flush filling concrete joints. The contractor shall be responsible for any damages to vehicles or any other private property.

B. Drying Joints and Cracks

After the air compressor operation, all transverse joints and random cracks shall be dried to remove any remaining moisture.

4. Installation

Sealing Joints and Cracks shall be by the overband method or flush fill method.

No sealing compound shall be applied in wet joints or cracks or where frost, snow or ice is present, nor when the **pavement temperature is less than 40°F**, unless otherwise approved by the Project Engineer. No transverse joints or random cracks shall be sealed until the cleaning and preparation of the joints or cracks have been inspected and approved by the Project Engineer or his designee. The cleaning operation shall be positioned just ahead of the sealing operation to guard against debris blowing into cleaned cracks or newly sealed cracks. No debris shall be blown onto vehicular traffic.

Apply the material by either a wand followed by a “V” or “U” shaped squeegee or a round application head having a concave underside or a narrow tip for tip/flush fill concrete

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joints. Apply 3" wide (unless otherwise directed by the Project Engineer) for standard coverage (overband) and shall be centered over the crack. Apply sealant at a thickness of **1/8 to 3/16** inch but do not oversupply squeegee. For flush filling of concrete cracks and/or joints use the appropriate wand tip to apply material directly into cracks/joints with no overband. Apply to dry and thoroughly cleaned cracks. Do not place material if moisture is present in the crack. Fill all longitudinal, random, and transverse cracks in the roadbed. Do not puddle or sag material. Fatigue cracks (alligator cracking), edge cracks, or slippage cracks shall **NOT** be sealed and will not be paid for unless directed by the RCOC.

Apply de-tackifying solution to protect the uncured crack treatment material from tacking. Do not permit traffic on the overband crack filler or tip/flush crack filler until de-tackifying solution has been applied or material has cooled sufficiently to prevent tracking by vehicle tires. The successful bidder is responsible for procuring de-tackifying solution at no additional cost to RCOC. Adhesion is checked by pulling up cooled sealant. Unbonded sealant is removed and crack is resealed at no additional cost to the RCOC.

5. Traffic Control

Traffic shall be maintained by Contractor throughout the project, in accordance with the most current version of the Michigan Manual of Uniform Traffic Control Devices (MIMUTCD) and any supplemental specifications.

Contractor shall coordinate this work with other contractors performing work within construction area or adjoining areas to avoid conflicts in maintenance of traffic, construction signing, and to provide for orderly progress of contract work.

Contractor shall monitor the weather and cease activity if weather conditions are poor. At no time during progression of work shall Contractor block access to any hydrant, valve, or appurtenance of any public utility without consent of the designated Road Commission's representative or specific utility company involved. Cost of maintaining traffic and all signs, barricades, temporary drives, and roadways will be included in proposed per pound price.

6. Weather Limitations

Place material at air temperatures between **45°F and 85°F**. **DO NOT** place material if moisture is present in the crack or when the temperature is below the dew point.

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7. Final Cleanup

The work shall not be considered as completed, nor will final payment be made until the area has been restored to a neat, orderly appearance acceptable to the Project Engineer. Equipment, excess material, rubbish, etc. resulting from the contractor's operation must be removed from the site

8. Hours of Work

Work shall be permitted only between the hours of 8:00 am and 3:30 pm, Monday through Friday or as directed by the Project Engineer. Work may be permitted outside of the above hours/days at the discretion of the Project Engineer.

9. Acceptance

Upon completion of work, the contractor shall schedule an inspection with the Project Engineer or his designee. The Project Engineer or his designee will note deficiencies, including areas exhibiting adhesion failure, cohesion failure, missed cracks, or other factors that the Project Engineer or his designee determines unacceptable. The Contractor(s) shall correct the work that the Project Engineer or his designee identifies as unacceptable at no additional charge (except missed cracks) to the RCOC. The Contractor(s) shall notify the Project Engineer or his designee upon completion of the required corrective work.

d. Locations:

Locations are various throughout Oakland County. Exact road locations will be provided to the successful bidder(s) prior to project commencement.

e. Measurement and Payment:

The completed work as measured for cleaning and sealing random cracks and joints will be paid for at the contract unit price of the following items of work:

Pay Item	Pay Unit
Overband Crack Fill	Pound
<u>Secondary Pay Item</u>	
Concrete Crack Seal (Flush Fill)	Pound

“Overband Crack Fill” will be paid for at the contract unit price per pound of hot-poured joint sealant placed into joints and/or cracks, the price shall be payment in full for furnishing all the equipment, materials, labor, traffic control, and supervision necessary to remove the existing sealers, fillers and/or other foreign material, cleaning, sealing and completing the work as specified herein. The old sealer and any other material removed from the joints shall be disposed of by the contractor in a manner approved by the Project Engineer and shall be included as part of this pay item.

“Concrete Crack Seal (Flush Fill)” will be paid for at the contract unit price per pound of hot-poured joint sealant placed into joints and/or cracks with the appropriate wand tips, the price shall be payment in full for furnishing all the equipment, traffic control, materials, labor and supervision necessary to remove the existing sealers, fillers and/or other foreign material, cleaning, sealing and completing the work as specified herein. The old sealer and any other material removed from the joints including but not limited to backer rod, shall be disposed of by the contractor in a manner approved by the Project Engineer, and shall be included as part of this pay item.

No adjustments in unit price, regardless of the percentage of increase or decrease in quantities, will be allowed for the cleaning and sealing of longitudinal or transverse cracks, or for hot-poured rubber-asphalt sealing compound. The Project Engineer or his designee shall decide which joints or cracks are to be worked on and can shift or change quantities as needed, and this will be done without a change in unit prices or extra compensation due to the contractor for the change. With contractor consent, the Board may extend the contract at the same unit prices.

Resealing joints or cracks where material does not adhere will not be paid for. Repairs will have to be done at a later date as a separate operation, at the sole expense of the Contractor.

Seal all cracks and joints (unless otherwise described in this provision) in the road that are less than 1 1/4 inch wide. Fatigue cracks (alligator cracking), edge cracks, or slippage cracks shall **NOT** be sealed and will not be paid for.

RCOC reserves the right to modify the quantities and locations to be consistent with budgeted funds. RCOC reserves the right to split the bids between or among two or more bidders. The quantities listed in these documents are estimates and approximate only and such quantities are subject to increase or decrease. Should it be in the best interest of the RCOC to do so, the RCOC reserves the right to increase or decrease the quantities of work to be done under this Contract and to make changes in the plan and specifications that may increase or decrease the quantities of work. With contractor consent, the Road Commission may extend the contract at the same unit prices. No adjustment to bid unit prices will be allotted to the contractor for any increase or decrease of contract bid items.